

Mahaveer Prasad v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 February 2020 · Writ-C No. 23378 of 2012 · **Writ disposed; billing dispute relegated to CGRF under clause 7.10.**

HEADNOTE

On a dispute of electricity bill, the Allahabad High Court followed its order in *Ram Autar* (Writ-C No. 11961 of 2012, 23.10.2019) and disposed of the writ by directing the petitioners to appear before the Consumer Grievance Redressal Forum created under clause 7.10 of the U.P. Electricity Supply Code, 2005. If they approach the Forum, the application is not to be rejected only on account of delay.

FACTUAL SUMMARY

Mahaveer Prasad and others challenged an electricity bill of U.P. Power Corporation Ltd. On 14 May 2012 the Court stayed recovery of the impugned bill if they deposited rural-area minimum fixed charges each month, allowed meter installation, and reserved whether they would pay metered or lump-sum charges. The petition remained pending with a similar billing controversy. It was finally heard on 26 February 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as forum for billing disputes

HOLDING

Where the controversy is a dispute of electricity bill, the writ petitioner is to appear before the Consumer Grievance Redressal Forum created under clause 7.10 of the U.P. Electricity Supply Code, 2005; if the petitioners approach the Forum, the application will not be thrown out only on account of delay. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE LIABLE TO PAY METERED CHARGES OR LUMP-SUM FIXED CHARGES, AND THE MERITS OF THE IMPUGNED BILL

The 2012 interim order reserved the metered-versus-lump-sum question; the 2020 disposal sent the billing dispute to the CGRF without deciding either issue. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ram Autar v. U.P. Power Corporation Ltd.</i> Writ-C No. 11961 of 2012, order dated 23.10.2019			1	Referred